

Arulmozhi @ Diviya vs T.Jegadesan on 20 January, 2026

Author: Mohammed Shaffiq

Bench: Mohammed Shaffiq

Tr.

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED : 20.01.2026

CORAM :

THE HONOURABLE MR JUSTICE MOHAMMED SHAFFIQ

Tr.C.M.P.(MD)No.617 of 2025

and

C.M.P.(MD)No.17951 of 2025

Arulmozhi @ Diviya

Vs.

T.Jegadesan

Prayer : Transfer Civil Miscellaneous Petition filed under section 24 of Civil Procedure Code to withdraw the H.M.O.P.No.200 of 2025 on the file of the Learned Sub Court, Sivakasi filed by the respondent herein and the same may be transferred to the court of the Learned Family Court, Trichy and such other orders as this Honourable Court may deem fit and proper in the circumstances of the case and thus render justice.

For Petitioner : Mr.S.Veerapandiselvaraj

For Respondent : M/s.Srividhya Aravindhan
(Through VC)

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ORDER

This Transfer Petition is at the instance of wife. She seeks withdrawal of H.M.O.P.No.200 of 2025 from the file of Sub Court, Sivakasi and transfer the same to the file of Family Court, Trichy.

2. Heard Mr.S.Veerapandiselvaraj, learned counsel for petitioner and M/s.Srividhya Aravindhan, learned Counsel for Respondent.

3. The petitioner and respondent got married on 08.09.2024 as per Hindu rites and customs. Due to differences, parties have separated. The respondent/husband initiated proceedings in H.M.O.P.No.200 of 2025 before Sub Court, Sivakasi seeking divorce. The petitioner has expressed difficulty in attending hearings at Sub Court, Sivakasi, which is about 216Kms from Trichy. Petitioner is required to be accompanied by her parents for every court hearings. The petitioner is now residing at her parents' house in Trichy; her parents are taking care of the petitioner. Petitioner has no source of income and presently dependent on her parents even for her daily needs. Thus, she may not be in a position to bear the travel expenditure. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 03/02/2026 04:21:44 pm)

4. Mrs.Srividhya Aravindhan, learned counsel for respondent, on instructions from respondent, submitted that respondent has no objection to transfer HMOP.No.200 of 2025, on the file of Sub Court, Sivakasi to the file of Family Court, Trichy.

5. It is relevant to note that Parliament, while amending the Hindu Marriage Act, has incorporated Section 19(iii), permitting a wife to initiate a proceeding in a place where she is residing. This is an indication that convenience of the wife has to be given precedence by the Court. In line with this Parliamentary amendment, this Court and the Supreme Court have consistently held in matters of transfer, convenience of wife should be given a superior consideration than that of husband. As the distance between Trichy and Sivakasi is considerable and since it will be difficult for the wife to travel for attending the Court, I am inclined to allow the petition seeking transfer as prayed for.

6. In view thereof, H.M.O.P.No.200 of 2025 pending on the file of Sub Court, Sivakasi, is hereby ordered to be withdrawn and transferred to the file of Family Court, Trichy. The Family Court, Trichy, is directed to dispose of the aforementioned case expeditiously, preferably within a period of six months.

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7. Family Court may not insist upon the physical presence of husband on all hearing dates and permit to appear through Video Conferencing. For non-essential and procedural hearings, he may be permitted to be represented through a counsel. He shall, however, present himself before the Court, when Trial Court passes a specific order for his appearance or when his presence is

indispensable.

8. With the above observations, the Transfer Petition is disposed of. There is no order as to costs. Consequently, the connected miscellaneous petition is closed.

20.01.2026 Index:Yes/No Speaking Order :Yes/No Neutral Citation:Yes/No gvn
<https://www.mhc.tn.gov.in/judis> (Uploaded on: 03/02/2026 04:21:44 pm) To

1.The Judge, Sub Court, Sivakasi, Virudhunagar District.

2.The Judge, Family Court, Tiruchirappalli.

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SHAFFIQ, J.

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